

The Scheduled Castes And Scheduled Tribes Orders (Amendment) Act, 1956

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[Act 63 of 1956](#)

[Published on 1 January 1956](#)

[Commenced on 1 January 1956](#)

[\[This is the version of this document from 1 January 1956.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

An Act to provide for the inclusion in, and the exclusion from the lists of Scheduled Castes and of Scheduled Tribes, of certain castes and tribes and matters connected therewith.

BE it enacted by Parliament in the Seventh Year of the Republic of India as follows:--

1.

Short title.

This Act may be called the Scheduled Castes and Scheduled Tribes Orders (Amendment) Act, 1956 .

2.

Definitions. In this Act,--

(a)

" article" means an article of the Constitution;

(b)

" census authority" means the Deputy Registrar General, India;

(c)

" last census" means the census held in 1951 ;

(d)

" prescribed" means prescribed by rules made under this Act.

3.

Amendment of Scheduled Castes Orders.

(1)

The Constitution (Scheduled Castes) Order, 1950 , is hereby amended in the manner and to the extent specified in Schedule I.

(2)

The Constitution (Scheduled Castes) (Part C States) Order, 1951 , is hereby amended in the manner and to the extent specified in Schedule II.

4.

Amendment of Scheduled Tribes Orders.

(1)

The Schedule to the Constitution (Scheduled Tribes) Order, 1950 , is hereby amended in the manner and to the extent specified in Schedule III.

(2)

The Schedule to the Constitution (Scheduled Tribes) (Part C States) Order, 1951 , is hereby amended in the manner and to the extent specified in Schedule IV.

5.

Determination of population of Scheduled Castes and Scheduled Tribes.

(1)

Where the list of Scheduled Castes or Scheduled Tribes in relation to any State is varied by this Act, the population as at the last census of the Scheduled Castes or, as the case may be, of the Scheduled Tribes in that State (including in relation to Assam, the population of the Scheduled Tribes in that State excluding the tribal areas, and the population in each autonomous district thereof) shall be ascertained or estimated by the census authority in such manner as may be prescribed and shall be notified by that authority in the Gazette of India: Provided that nothing in this section shall apply to any State in relation to which provision for redetermining the population of Scheduled Castes and Scheduled Tribes is made in section 42 of the States Reorganisation Act, 1956 (

37 of 1956

), or in section 15 of the Bihar and West Bengal (Transfer of Territories) Act, 1956 (

40 of 1956

).

(2)

The population figures so notified shall be taken to be the relevant population figures as ascertained at the last census and shall supersede any figures previously published.

6.

Amendment of orders of the former Delimitation Commission.

In addition to the duties imposed by section 44 of the States Reorganisation Act, 1956 (

37 of 1956

), and any other law on the Delimitation Commission constituted under section 43 of the said Act, it shall be the duty of that Commission--

(a)

to redetermine, on the basis of the population figures notified under section 5 of this Act for any State, the number of seats to be reserved for the Scheduled Castes and Scheduled Tribes of that State in the House of the People and in the Legislative Assembly, if any, of that State, having regard to the relevant provisions of the constitution and of the States Reorganisation Act, 1956 (

37 of 1956

);

(b)

if on such redetermination the number of reserved seats of any class in any State is found to be different from the number fixed in Final Order No. 1 of the former Delimitation Commission, to make such amendments in any of the orders made by that Commission under section 8 of the Delimitation Commission Act, 1952 (81 of 1952), as may be necessary for the purpose of giving proper representation to the Scheduled Castes or the Scheduled Tribes, as the case may be, of that State; and

(c)

to take into account the provisions of this section while preparing the Order referred to in sub- section (2) of section 47 of the States Reorganisation Act, 1956 (

37 of 1956

).

7.

Power to make rules.

1

(1)] The Central Government may, by notification in the Official Gazette, make rules for carrying out the purposes of this Act.

(2)

2

Every rule made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule."]

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